

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jose S. Franco
(Covering for Honorable Jeffrey B. El-Hajj)**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: September 15, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings.

This system requires advance registration with a case number and hearing date. Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to pay for their own court reporter, the appropriate form must be submitted: <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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LINE #	CASE #	CASE TITLE	RULING
9:00 Line 1	22CV399413	Li Liu v. Kenneth To	Plaintiff's Motion to Correct Reporter's Transcript Plaintiff's motion to correct and settle the court reporter's transcript of December 16, 2025 Trial Setting Conference hearing was filed on March 20, 2026. A Proof of Service by mail was filed on March 27, 2026. Notice is proper and no opposition was filed by the Defendant. The Plaintiff provides no legal authority for their argument in the motion, notice, or memorandum of points and authorities. Further, the Plaintiff does not provide the entire transcript of the hearing but only different pages and references statements from a previous hearing. California Code of Civil Procedure section 273(a) creates a rebuttable that a certified court reporter's transcript is accurate. The Plaintiff has not rebutted the presumption as to the transcript of the December 16, 2025 Trial Setting Conference, and has not made the requisite showing to rebut the presumption by competent evidence. Additionally, the Trial Setting Conference was a scheduling hearing and not a substantive hearing addressing material issues related to witness testimony, exhibits, evidence, arguments of the parties or merits of the case. The motion is DENIED.

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9:00 Line 2	25CV457719	TBF Financial I, LLC, a Limited Liability Company v. CUKUI, a Corporation et al.	Plaintiff's Motion for Entry of Judgment Pursuant to Stipulation Plaintiff's unopposed motion for entry of judgment pursuant to stipulation (Code Civ. Proc., § 664.6) was filed on February 18, 2026, with proof of service by first class mail. Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment on or about March 23, 2025, under which Defendants agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates Defendants stopped making payments. On good cause shown, the motion is GRANTED. Plaintiff (Moving Party) is to submit a proposed order and proposed judgment, indicating damages/principal of \$8,408.95, interest of \$1,893.63, attorney's fees of \$1,350, and costs of \$536.56 for a total of \$12,189.14.
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9:00 Line 3	25CV462143	Wells Fargo Bank, N.A. v. Jack Delagdo, an Individual	Plaintiff's Motion to Vacate Dismissal Under C.C.P. § 664.6 and Enter Judgment Pursuant to Stipulation Plaintiff's unopposed motion to vacate dismissal under section Code of Civil Procedure section 664.6 and enter judgment pursuant to stipulation was filed on June 10, 2026, with proof of service by mail. Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2025, under which Defendant agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates Defendant stopped making payments after the first payment was made. On good cause shown, the motion is GRANTED. The dismissal order entered March 24, 2026 is set aside. Plaintiff (Moving Party) is to submit a proposed order and proposed judgment, indicating damages/outstanding amount of \$6,348.00 and costs of \$315.00 for a total of \$6,663.00.
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9:00 Line 4,5	25CV474602	Scott Johnson v. Pekoe, LLC, a California Limited Liability Company	Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Form Interrogatories, Set One and for Sanctions Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Plaintiff's Request for Production, Set One and for Sanctions. Plaintiff filed two motions to compel: (1) compel verified and unobjected-to further responses to form interrogatories (Code Civ. Proc., § 2030.290) and (2) compel verified, unobjected-to responses for requests for production (Code Civ. Proc., § 2031.300, subd. (b)) on February 19, 2026. Defendant's opposition to both motions were filed on September 1, 2026. Plaintiff's Reply to both motions was filed on September 8, 2026. Notice and service were proper. The court has considered the filings of the parties related to these two motions, including the concurrently filed declarations, statements, and exhibits. Plaintiff served the Request for Form Interrogatories, Set One and Requests for Production, Set One on Defendant on December 12, 2025, and responses were due on January 14, 2026. Defendant served unverified responses on January 26, 2026. A meet and confer occurred sometime after that date. Verification of the responses did not occur until August 30 and 31, 2026. The fact that the verified responses have been provided does not render these motions moot. The trial court retains the discretion and authority to hear and grant a motion to compel responses under Cal Code Civ Proc § 2030.290 and requests for production under Cal Code Civ Proc § 2030.300. When responses and requests are unverified, they do not constitute substantial compliance, and the propounding party remains entitled to seek an order compelling a response without objections and to seek sanctions even if the responses and requests are later verified.
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			Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Form Interrogatories, Set One is GRANTED. Sanctions are imposed \$1,150.55 and due within 30 days of service of this order. This figure represents 1.5 hours of Plaintiff's counsel's work on this motion and the filing fee and will not include time for preparation of any drafts of the motion. Motion to Compel Verified, Unobjected-to Further Responses to Plaintiff's Request for Production, Set One is GRANTED. Sanctions are imposed \$1,150.55 and due within 30 days of service of this order. This figure represents 1.5 hours of Plaintiff's counsel's work on this motion and the filing fee and will not include time for preparation of any drafts of the motion. Plaintiff is ordered to prepare and submit the orders.
9:00 Line 4,5	25CV474602	Scott Johnson v. Pekoe, LLC, a California Limited Liability Company	

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9:00 Line 6	26CV489192	Bank of America, N.A. v. Jimmy Lieu	Motion for Judgment on the Pleadings Plaintiff's motion for judgment on the pleadings was filed on August 14, 2026, and was accompanied by a declaration, memorandum of points and authorities, request for judicial notice and proposed orders. Proof of service for the motion has not been filed. Plaintiff to appear to address the lack of proof of service.
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9:00 Line 7	26CV501048	GES Properties, LLC v. Fairview Restoration, Inc.	Petition for Order Releasing Property from Claim of Mechanics Lien Petitioner's verified petition for release of property from mechanics lien was filed on August 7, 2026, and a proof of service was filed on August 21, 2026. No opposition was filed by Respondent. Notice is proper (Civ. Code, §§ 8108, subd. (c); 8486, subd. (b)), and the petition is deemed unopposed. A mechanics lien claimant must commence an action to enforce a mechanics lien within 90 days after the claim of lien is recorded. The claim of lien "expires and is unenforceable" if no action is commenced within that time. (Civ. Code, § 8460, subd. (a).) A property owner or other entity with interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant does not timely commence an action to enforce the lien. (Civ. Code, § 8480, subd. (a).) The petition must be verified and must allege "all of the following: (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.; (b) The county in which the claim of lien is recorded.; (c) The book and page or series number of the place in the official records where the claim of lien is recorded.; (d) The legal description of the property subject to the claim of lien.; (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.; (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.; (g) Whether an action to enforce the lien is pending.; (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." (Civ. Code, § 8484.)
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			A prevailing party is entitled to reasonable attorney fees. (Civ. Code, § 8488, subd. (c).) The Petition is GRANTED. The court finds that a sufficient showing has been made as to the requests in the Petition. The court finds that Respondent's claims have expired and are unenforceable, and orders the property released from the claims of liens recorded. The court has considered the overall complexity of the petition and request and the fact that it is unopposed and awards attorney fees in the amount of \$4,140 and costs in the amount of \$495, finding that this amount to be reasonable. Petitioner is ordered to submit a proposed order.
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9:01 Line 1	24CV440131	Jose Manuel Ruelas v. Alikssa Adilene Flores et al.	Hearing: Order of Examination Parties to appear.
9:01 Line 2	24CV446482	XZ Sonder Technologies Corp. v. IDC Technologies, Inc.	Hearing: Order of Examination Parties to appear.
9:01 Line 3	25CV455916	Clara Medina v. Nitin Gambhir et al.	Motion to Withdraw as Attorney Plaintiff's counsel, attorneys Marie C. Ballon and Arianne G. Espinueva of the Valero Law Group, move to be relieved as counsel. The motion was filed on August 14, 2026 along with proof of service, and no opposition or objection has been filed by the Plaintiff. The motion is GRANTED and Valero Law Group, Marie C. Ballon, and Arianne G. Espinueva are relieved as counsel of record for the Plaintiff. Proposed order is to be submitted by counsel.

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